

upon them.”⁵² Extreme Radicals, those who believed that the remedy for the oppressed Unionists in the South was a general expansion of federal judicial jurisdiction so that “loyal men could have the privilege of having their causes, civil and criminal, tried in the Federal courts,” were disappointed with the Act as passed.⁵³

Finally, it is significant that the opponents of the Act, exhausting ingenuity to discover constitutional objections to every provision of it, also construed § 1 as addressed only to conduct authorized by state law, and therefore within the admitted permissible reach of Fourteenth Amendment federal power. “The first section of this bill prohibits any invidious legislation by States against the rights or privileges of citizens of the United States,” one such opponent paraphrased the provision.⁵⁴ And Senator Thurman, who insisted vociferously on the absence of federal power to penalize a conspiracy of individuals to violate state law (“that is a case of mere individual violence, having no color whatsoever of authority of law, either Federal or State; and to say that you can punish men for that mere conspiracy, which is their individual act, and which is a crime against the State laws themselves, punishable by the State laws, is simply to wipe out all the State jurisdiction over crimes and transfer it bodily to the Congress”),⁵⁵ admitted without question the constitutionality of § 1⁵⁶ (“It refers to a deprivation under color of law, either statute law or ‘custom or usage’ which has become common law”).⁵⁷

⁵² *Id.*, at 368 (Sheldon). See also *id.*, at 501 (Frelinghuysen).

⁵³ *Id.*, at App. 277 (Porter).

⁵⁴ *Id.*, at App. 268 (Sloss).

⁵⁵ *Id.*, at App. 218.

⁵⁶ *Id.*, at App. 216.

⁵⁷ *Id.*, at App. 217. One significant objection made to § 1 reveals its opponents' comprehension of its scope. It was objected that the section was unnecessary inasmuch as under Amendment Fourteen and the Supremacy Clause there was no longer any danger of “violation